GOV•UK

Claim asylum in the UK

1. Overview

You must apply for asylum if you want to stay in the UK as a refugee.

To be eligible, you must have left your country and be unable to go back because you fear persecution.

Find out more about who is eligible to claim asylum (/claim-asylum/eligibility).

> Apply for a visa (https://www.gov.uk/check-uk-visa) if you want to come to the UK for another reason (for example to work, study or remain with family). If you're already in the UK and want to remain with family living here, apply for a family of a settled person visa (/remain-in-uk-family).

You should apply when you arrive in the UK or as soon as you think it would be unsafe for you to return to your own country. Your application is more likely to be refused if you wait.

When you apply you'll have a meeting with an immigration officer (/claim-asylum/screening) (known as a 'screening').

After your screening (/claim-asylum/after-your-screening) the Home Office will decide if your claim can be considered in the UK. If it can, you'll have an asylum interview (/claim-asylum/asylum-interview) with a caseworker.

You'll be told when there's a decision on your application (/claim-asylum/decision).

You can get up to 2 years in prison or have to leave the UK if you give false information on your application.

Waiting for your decision

You'll be told after your screening (/claim-asylum/after-your-screening) what you must do while you're waiting for your asylum decision, for example report to a

caseworker regularly (known as ‘reporting events’).

You must tell the authorities if your situation changes.

You will not usually be allowed to work while your asylum claim is being considered (/government/publications/working-whilst-an-asylum-claim-is-considered).

Help you can get

You can get help (/claim-asylum/help-you-can-get) with:

- getting legal representation for your asylum claim
- living in the UK while you wait for your decision

Children applying on their own

You can apply as a child on your own (/claim-asylum/children) if you do not have an adult relative who is also claiming asylum.

2. Eligibility

To stay in the UK as a refugee you must be unable to live safely in any part of your own country because you fear persecution there.

> If you’re stateless, your own country is the country you usually live in.

This persecution must be because of:

- your race
- your religion
- your nationality
- your political opinion
- anything else that puts you at risk because of the social, cultural, religious or political situation in your country, for example, your gender, gender identity or sexual orientation

You must have failed to get protection from authorities in your own country.

When your claim might not be considered

Your claim might not be considered if you:

- are from an EU country (/eu-eea)
- travelled to the UK through a ‘safe third country’
- have a connection to a safe third country where you could claim asylum

Generally, a safe third country is one that:

- you’re not a citizen of
- you would not be harmed in
- would not send you on to another country where you would be harmed

Family members

You can include your partner and your children under 18 as ‘dependants’ in your application if they’re with you in the UK.

If your application is successful, any dependants named on it can usually stay for the same amount of time as you. They will not get refugee status unless they make their own claim for asylum.

Refugee status means someone is protected by the Refugee Convention (https://www.unhcr.org/uk/1951-refugee-convention.html). They can, for example, apply for a refugee integration loan (/refugee-integration-loan/how-to-apply).

3. Documents you must provide

You’ll need documents for yourself and your dependants (partner and children under 18) for your asylum screening (/claim-asylum/screening).

Documents you should bring (if you have them) include:

- passports and travel documents
- identification documents, for example identity cards, birth and marriage certificates or school records
- anything you think will help your application

Documents to prove your UK address

If you’re already in the UK, you and your dependants must bring documents that prove your UK address.

You'll need different documents depending on whether you're living in your own accommodation or staying with someone else.

Living in your own accommodation

You'll need to provide documents showing your full name and address. This could be a:

- bank statement
- housing benefit book
- council tax notice
- tenancy agreement
- household bill

Staying with someone else

You'll need to provide:

- a recent letter (less than 3 months old) from the person you're staying with to confirm you have their permission to stay
- documents showing the full name and address of the person you're staying with, like a council tax notice, tenancy agreement or household bill

4. Attend an asylum screening

You register your asylum claim at a 'screening'. This is a meeting with an immigration officer where you tell them about your case.

You'll have your screening at the UK border if you claim asylum as soon as you arrive. You can also be screened once you're in the UK if you become eligible for asylum (/claim-asylum/eligibility).

At your screening you'll:

- be photographed
- have your fingerprints taken
- have an interview to check who you are and where you're from

You'll be asked why you want asylum. You can bring written evidence to support your claim if you want, as well as any other documents you need (/claim-asylum/documents).

You'll need to say if you or your dependants are taking any medication and give any relevant medical information. A dependant is your partner and any children under 18.

> You can ask for a male or female interviewer, but your choice might not always be available.

Screening at the UK border

You must tell a Border Force officer that you want to claim asylum.

Your application will be registered and you'll be screened - ask for an interpreter if you need one.

Screening if you're already in the UK

Call the asylum registration appointment line to book a screening appointment.

When you call, you'll be asked simple questions about you, your family and your housing arrangements.

> If you have nowhere to live, you still need to call the asylum registration appointment line. You may be told to attend a screening appointment.

You will not be asked why you're claiming asylum during this call.

Tell the asylum registration appointment line if:

- you need to bring any dependants to your screening appointment
- you're a child and need to be accompanied
- you need an interpreter at your screening appointment

> Asylum registration appointment line
> Telephone: 0300 123 4193
> Monday to Thursday, 9am to 4:45pm
> Friday, 9am to 4:30pm
> Find out about call charges (/call-charges)

If you're eligible, you will be offered a registration screening appointment at your nearest asylum registration location.

Your asylum claim is not registered until you attend your screening appointment and your application has been accepted.

Do not attend an asylum registration location without a screening appointment. If the asylum registration location does not know you're coming, you may not be seen.

Attending your screening appointment

You can bring a legal representative and an interpreter to your screening appointment if you need them. You must bring any dependants who are claiming asylum with you.

If you're helping a child register their own asylum claim, you can go with them to their screening appointment.

You must also bring the documents you need (/claim-asylum/documents) for your application.

You cannot get financial help for travel to or from the asylum registration location.

> Tell the appointment service if your situation changes before your appointment date, for example if you can no longer stay where you are living.

5. After your screening

After your screening, the Home Office will review your case and decide whether it can be considered in the UK.

You'll be sent an asylum registration card (ARC) to your UK address, unless you've been detained.

> If the Home Office cannot send you an ARC immediately, they'll send you an appointment letter telling you what to do next.

You might also be sent an asylum questionnaire. If you get one, fill it in and return it by the deadline - the address and deadline are written on the letter

that comes with the questionnaire. If you cannot fill it in, call the Home Office asylum team. Their phone number is on the letter.

The Home Office will contact you about your asylum claim. If your contact details change, you must update them using the online form (https://visa-address-update.service.gov.uk/).

If your case can be considered in the UK, it will be given to a caseworker.

If your case cannot be considered in the UK

You may be sent to a safe country that will consider your asylum claim. This might happen if you've travelled to the UK through a safe third country or you have a connection with another country that you could claim asylum in.

Generally, a safe country is one that:

- you're not a citizen of
- you would not be harmed in
- would not send you on to another country where you would be harmed

> The Home Office can decide to send you to a safe country after your screening or your asylum interview.

If the Home Office cannot place you in another safe country, your case will be considered in the UK and given to a caseworker.

Caseworkers

You may have an asylum interview (/claim-asylum/asylum-interview) with your caseworker. They'll make a decision about your application (/claim-asylum/decision). They'll also explain the asylum process and tell you what to do while you wait for an asylum decision.

You'll need to go to regular meetings with your caseworker. These are known as 'reporting events'.

If you do not go to your reporting events, your asylum claim may be withdrawn and you may be detained.

Tell your caseworker if you have any special needs, for example if you have a disability or need medication.

Your ARC

The ARC shows you've applied for asylum. You can use it to:

- show who you are
- show whether you have permission to work
- get health or education services

You must take your ARC with you when you go to your reporting events.

If you do not have your ARC

Contact the Home Office using the online form (/government/publications/application-registration-card-arc-enquiry) if you have any problems - for example:

- you've not got your ARC through the post
- you've lost it
- it's been stolen
- it's expired

You'll be asked to give your Home Office or port reference number, and your ARC reference (if you know it).

Being detained

You may be detained at an immigration removal centre (/immigration-removal-centre) while you wait for a decision on your application.

You'll either be:

- released if you get permission to stay in the UK
- held until you're removed from the UK if you do not get permission to stay

You can also be detained and removed if it's decided that another country is responsible for offering you asylum.

You may be able to appeal against the decision (/immigration-asylum-tribunal).

When you will not be detained

You will not usually be detained if:

- you're a child
- you're elderly
- you're a family with children
- you're pregnant
- you're accepted as being a victim of trafficking
- you're able to provide independent evidence of torture
- you have a mental or physical condition that cannot be managed or would present a risk to others in an immigration removal centre

Cancel your asylum claim

Email the Home Office as soon as possible if you want to stop your asylum claim. For example, because you get another type of permission to stay.

> Asylum central communications hub
> asylumcentralcommunicationshub@homeoffice.gov.uk

6. Asylum interview

Your asylum interview will usually take place soon after your screening.

You may be granted protection status without having to attend an interview. This will happen if there is enough evidence from your screening and your questionnaire, if you did one.

You can read about asylum claims where an interview may not be required (/government/publications/streamlined-asylum-processing).

> Your application will usually be withdrawn if you do not go to your asylum interview. You'll have to apply again if you still want to stay in the UK.

You'll get a letter telling you when and where to attend your interview.

If your partner or children under 18 were included in your application as 'dependants' they may also need to attend an interview. The letter will tell you

if they do.

The interview

You'll usually be interviewed alone, without your family members. An interpreter will be provided, if you need one.

> The information you provide will be confidential and will not be shared with the authorities in your own country.

Use this interview to explain:

- how you were persecuted in your country
- why you're afraid to go back to your country

You may be asked questions about difficult topics but it's important that you explain what has happened to you and your family.

> You must tell the caseworker everything you want them to consider or it can count against you.

Your caseworker will make notes in a document called an 'interview record'. You'll get a copy of this at the end of the interview.

Most asylum interviews happen over video calls. The audio will be recorded, and you'll receive a copy of the recording after the interview.

Evidence you'll need

You'll need to send the following documents to the Home Office by post, if you have them:

- birth certificate
- passport
- national ID card

These need to be the original versions and not copies. You should also send these identity documents for any dependants included in your application.

> UK Visas and Immigration
> PO Box 7782
> Village Way
> Bilston
> WV1 9QB

You also need to email any evidence you have of your persecution, and any other evidence you think will help your application, to the Home Office.

> asylumcentralcommunicationshub@homeoffice.gov.uk

If you cannot send your identity documents and evidence before your interview, you'll need to send them after. You may be asked to send extra evidence to your caseworker after the interview if they think it might help your application.

Legal representative

You can bring a legal representative to this interview, for example a lawyer or solicitor. Find out if you can get help paying for legal advice (/check-legal-aid) about asylum.

Your interview will take place even if your legal representative is not there. You cannot ask for more time to get a legal representative.

7. Get a decision

Your application will be decided as soon as possible. It may take longer if it's complicated, for example:

- your supporting documents need to be verified
- you need to attend more interviews
- your personal circumstances need to be checked, for example because you have a criminal conviction or you're currently being prosecuted

> Ask your legal adviser if you want an update on your application.

You'll be given or refused permission to stay in one of the following ways.

Permission to stay if you have refugee status or humanitarian protection

Refugee status means you're recognised as a refugee, as defined in the Refugee Convention (https://www.unhcr.org/uk/about-unhcr/who-we-are/1951-refugee-convention).

You may get humanitarian protection if you do not qualify for refugee status but cannot return to your own country.

You can read about how applications are decided (/government/publications/considering-asylum-claims-and-assessing-credibility-instruction).

What you'll get

If you're granted refugee status or humanitarian protection you'll have permission to stay in the UK for a minimum of 5 years.

You can also apply for a refugee integration loan (/refugee-integration-loan/how-to-apply).

After 5 years, you can apply to settle in the UK (/settlement-refugee-or-humanitarian-protection).

Your partner and children under 18

If you included a partner or children under 18 in your application as 'dependants', they'll usually get permission to stay for 5 years.

Dependants can apply to settle in the UK as a family (/settlement-refugee-or-humanitarian-protection/family-applying-as-dependants) after 5 years.

Dependants are not given refugee status or humanitarian protection unless they make their own claim for asylum. However, they can apply for a refugee integration loan (/refugee-integration-loan/how-to-apply) if you have refugee status or humanitarian protection.

Permission to stay for other reasons

You may get permission to stay for other reasons if you do not qualify for permission to stay as a refugee or for humanitarian reasons.

How long you can stay will depend on your situation.

You may be able to apply to extend your stay (/government/publications/application-to-extend-stay-or-settle-in-the-uk-form-dl) or settle in the UK (/settlement-refugee-or-humanitarian-protection) towards the end of your stay.

No reason to stay

You'll be asked to leave the UK if you do not qualify for refugee status and your caseworker decides there's no other reason for you to stay.

You may be able to appeal against the decision (/immigration-asylum-tribunal/overview).

You'll have to leave if you do not appeal in the time allowed, or if your appeal is unsuccessful. You can:

- leave by yourself - you can get help with returning home (/return-home-voluntarily)
- be forced to leave - you'll get a letter before this happens, then you may be detained without warning at an immigration removal centre (/immigration-removal-centre) and then removed from the UK

8. Help you can get

You can get help from asylum helplines run by charities (/asylum-helplines).

They can help with:

- explaining your asylum claim, for example getting a solicitor or lawyer to represent you
- living in the UK while your claim is being considered, for example getting asylum support, housing problems, dealing with agencies or finding English language classes and schools

Legal advice

You can get legal advice (/legal-advice-immigration-asylum) to help your asylum claim.

Housing and money

You may also be able to get housing and money (/asylum-support/) ('asylum support') to support you and your family. If you qualify, this will only start on the

day you register your asylum claim (/claim-asylum/screening).

Help returning home

You may be able to get help with returning home (/return-home-voluntarily/who-can-get-help).

9. If you're under 18

This information is for children applying on their own.

> If you have an adult relative who's claiming asylum you should apply as part of that relative's application instead.

You're not in the care of social services

You should use the walk-in service at the asylum intake unit (/asylum-intake-unit).

If you have an adult who is legally responsible for you

The adult who is taking responsibility for your care must attend the walk-in service at the asylum intake unit with you.

If you're living with several relatives the closest blood relative willing to take responsibility for you must attend.

The adult must provide proof of address and photo ID (passport or driving licence).

If you do not have an adult who is legally responsible for you

You should go to the police or social services, or you can walk into the asylum intake unit.

You're in the care of social services

You must book an appointment at the asylum intake unit (/asylum-intake-unit) by calling the appointment booking line.

> Asylum intake unit appointments line
> Telephone: 0300 123 4193
> Monday to Thursday, 9am to 4:45pm
> Friday, 9am to 4:30pm
> Find out about call charges (/call-charges)

You'll need the following information when you book your appointment:

- your name, date of birth and nationality
- the number on your passport or national identity document, if you have one - or the number on your birth certificate if you do not
- your foster carer's name and contact details
- details of any medical conditions you have

> For more information read the guidance on processing asylum applications from children (/government/publications/processing-an-asylum-application-from-a-child-instruction).

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